Brendan Ngwa Nforbi
Plaintiff, In Propria Persona

CONFIDENTIAL SETTLEMENT COMMUNICATION
FED. R. EVID. 408; CAL. EVID. CODE §§ 1152, 1154
NOT ADMISSIBLE FOR ANY PURPOSE

September 25, 2026

VIA EMAIL (allison.kray@fedex.com)

Allison A. Kray, Esq.
Federal Express Corporation
2601 Main Street, Suite 1100
Irvine, CA 92614

Re: *Newanforbi v. Federal Express Corporation*, U.S. District Court, E.D. Cal., No. 2:26-cv-02881-DAD-SCR -- Settlement Proposal

Dear Ms. Kray:

Thank you for raising settlement. You mentioned that your client needs a resolution that makes business sense, so this proposal starts from your client's own valuation of the case.

In its Notice of Removal, Federal Express Corporation told the Court:

- that Plaintiff's lost-wage claim alone is **$93,555**, consisting of $51,435 in back pay and $42,120 in front pay (ECF No. 1 ¶¶ 28–29);
- that Penal Code section 290.46(j)(4)(A) provides a **$25,000** "statutory minimum" (*id.* ¶ 32);
- that emotional distress damages "alone" can exceed **$75,000** (*id.* ¶ 31); and
- that punitive damages "alone could exceed" **$75,000** (*id.* ¶ 38).

Plaintiff's proposal uses those figures:

Component	**Basis**	**Amount**
Lost wages	Defendant's figure, ECF No. 1 ¶¶ 28–29	$93,555
Section 290.46 statutory amount	Defendant's figure, ECF No. 1 ¶ 32	$25,000
Emotional distress	Below Defendant's $75,000 figure, ECF No. 1 ¶ 31	$50,000
Punitive damages	Plaintiff's Code Civ. Proc. § 425.115 notice, ECF No. 1 ¶ 38	$25,000
Total		**$193,555**

Plaintiff will resolve this action for $195,000 on the following terms:

1. Payment of $195,000 within fourteen (14) days after the settlement agreement is fully executed.
2. A release limited to the claims asserted in this action and to Plaintiff's 2025 application, the related background report, and the related adverse action.
3. Confidentiality limited to the settlement amount.
4. Dismissal of this action with prejudice within five (5) business days after the funds clear, with each side bearing its own fees and costs.
5. The allocation between wage and non-wage payments to be agreed in writing.
6. Any additional terms, such as no-rehire or non-disparagement provisions, are subject to separate negotiation.

This figure uses Defendant's own August 2027 trial assumption, not the October 26, 2027 trial date in Defendant's status report (ECF No. 10). It uses the low end of the pay range in Ms. Bow's declaration (ECF No. 1-2 ¶ 6). It adds nothing for the additional damages of up to three times actual damages that section 290.46(j)(4)(A) allows. And it avoids the cost of the schedule Defendant has proposed, which runs through expert discovery and a five-to-seven-day trial.

This proposal remains open through 5:00 p.m. Pacific Time on October 7, 2026, and Plaintiff would welcome your client's response before the October 8, 2026 status conference. Any settlement is subject to a written agreement signed by both parties. This proposal is made solely for purposes of compromise and is not an admission or a waiver of any claim, right, or remedy.

Thank you,

Brendan Ngwa Nforbi
Plaintiff, In Propria Persona